

Why were these laws enacted?

As a result of the technological advancements in the IT industry, computers and internet became accessible to the common man in our country quite rapidly. Like any technology, IT too met with two kinds of people -- the users and the abusers. While cases of hacking came to light and identity, privacy and information security was found to be increasingly compromised by the new IT revolution, the need was felt for law and order mechanism in the electronic world too.



What offences are covered under these laws?

One viewpoint considered when drafting the IT Amendment Act, 2008, was that it should be a comprehensive piece of legislation with minimal dependence on other penal laws. Although this recommendation seems to have been overlooked, several new offences have been defined in the 2008 version. The two IT Acts together define the below offences and also recommend punishments for each of them:

1. Hacking

It is not defined in either of the IT Acts, which in itself may have considerably weakened the cybercrime legislation in India.

2. Data theft

This offence is defined as copying or extracting information from a computer system without the owners, including computer theft and theft of digital signals during transmission.

3. Identity theft (including Password Theft)

As per the IT (Amendment) Act 2008, this offence is defined as fraudulently